

| Session and Chapter.        | Title or Short Title.                       | Extent of Repeal.                |
|-----------------------------|---------------------------------------------|----------------------------------|
| 6 Anne c. 54 -              | The Queen Annes Bounty Act, 1707.           | The whole Act.                   |
| 1 Geo. 1. Stat. 2, c. 10. • | The Queen Annes Bounty Act, 1714.           | Sections seventeen and eighteen. |
| 3 Geo. 1. c. 10             | The Queen Annes Bounty Act, 1716.           | The whole Act.                   |
| 45 Geo. 3. c. 84.           | The Queen Annes Bounty Act, 1805.           | Section two.                     |
| 1 & 2 Vict. c. 20.          | The Queen Annes Bounty Act, 1838.           | Sections two to ten inclusive.   |
| 4 & 5 Vict. c. 39.          | The Ecclesiastical Commissioners Act, 1841. | Section four.                    |
| 32 & 33 Vict. c. 111.       | The Bishops Resignation Act, 1869.          | Section nine.                    |

## No. 6.

A MEASURE passed by the National Assembly  
of the Church of England

To establish a system of Pensions for the Clergy (other than Diocesan Bishops), to provide for the transition from the Incumbents Resignation Acts, 1871 and 1887, to such system, and to effect changes in the constitution and management of the Clergy Pensions Institution.

[4th August 1926.]

## PENSIONS.

1.—(1) This Measure shall apply to all—

(a) bishops suffragan;

(b) assistant bishops, other than bishops who render occasional assistance to diocesan bishops;

Scope of  
Measure.

- (c) chaplains of diocesan bishops;
- (d) deans, canons, prebendaries, and minor canons of cathedral and collegiate churches;
- (e) archdeacons;
- (f) incumbents of benefices;
- (g) stipendiary assistant curates; and
- (h) other clerks in Holy Orders engaged in rendering continuous and whole time assistance to bishops or incumbents of parishes in the discharge of their duties;

who (i) on the appointed day or at any time thereafter hold office or discharge their functions in the area to which this Measure applies, (ii) have not attained the age of fifty-five years before the appointed day, (iii) hold a benefice, deanery, prebend or canonry or receive a stipend, salary or emolument, the net annual value or the annual amount of which as estimated in manner provided by this Measure for the purpose of assessing contributions hereunder exceeds one hundred pounds, and (iv) have not been granted exemption from the provisions of this Measure.

(2) The pensions authority established by this Measure (herein referred to as the pensions authority) shall have power to apply this Measure to any clerk in Holy Orders whether beneficed or unbeneficed who (i) has attained the age of fifty-five years before the appointed day, (ii) holds or has held preferment or office in the area to which this Measure applies, and (iii) is disabled by age or infirmity for the due performance of the duties of such preferment or office.

(3) The pensions authority shall also have power to apply this Measure to any bishop, priest or deacon engaged on the appointed day or at any time thereafter in ecclesiastical, educational, charitable, or other public work (either in the area to which this Measure applies or outside) by agreement with such bishop, priest, or deacon.

(4) The pensions authority shall have power to grant exemption from the provisions of this Measure to any bishop, priest or deacon who shall (i) have attained the age of forty-two years before the appointed day, (ii) make an application for such exemption in the prescribed

manner, and (iii) prove in the prescribed manner to the satisfaction of the pensions authority that there is secured to him a provision for his maintenance which will be available in the event of his retirement, and which will be at least equal in value to the pension which would become payable to him under this Measure if he were not exempted from the provisions thereof in the event of his retiring after having attained the age of seventy years.

(5) The pensions authority shall, subject to the provisions of this Measure, exercise the power conferred upon them by subsection (2) of this section in such manner as will, so far as is practicable, maintain and continue the system of pensions for clergymen established by the Ecclesiastical Commissioners, and shall in administering the said system of pensions conform, so far as is possible, to the settled practice of the said Commissioners, and to clauses 13 and 14 of the Regulations made by them dated the twenty-fifth day of February, 1915.

2.—(1) Every person to whom this Measure applies by virtue of the provisions of subsection (1) of section one of this Measure (herein referred to as a compulsory contributor) who retires at any time after the appointed day after a qualifying period of pensionable service as hereby defined shall be entitled, subject to the fulfilment by him of the conditions hereby laid down, to receive a pension under this Measure during the remainder of his life. Provision of pensions.

(2) Every person to whom this Measure is applied by the pensions authority under the power conferred on the said authority by subsection (2) of section one of this Measure (herein referred to as a non-contributing pensioner) shall receive such pension hereunder as, subject to the provisions of this Measure, may be granted to him by the pensions authority.

(3) Every person to whom this Measure is applied by the pensions authority under the power conferred on the said authority by subsection (3) of section one of this Measure (herein referred to as a voluntary contributor) shall receive such pension hereunder as, subject to the provisions of this Measure and of his agreement with the pensions authority, may be payable under such agreement.

Qualifying  
pensionable  
service.

**3.**—(1) For the purposes of this Measure a qualifying period of pensionable service means a period of or a succession of periods either with or without intervals amounting in the whole to not less than fifteen years commencing and terminating at the times required by this section during which a compulsory contributor has within the area to which this Measure applies held such office or discharged such functions as constitute him a compulsory contributor or would have constituted him such a contributor if this Measure had been in force during the whole of such qualifying period.

(2) A qualifying period of pensionable service may commence either before, on or after the appointed day, but must not terminate more than ten years before the date of the retirement of the compulsory contributor concerned.

Retirement.

**4.** For the purposes of this Measure no bishop, priest or deacon—

(i) shall be deemed to have retired or to be in retirement if and so long as he holds any ecclesiastical office or preferment or curacy, provided that the holding of an honorary canonry or a non-residentiary prebend or a cathedral dignity or office with a stipend not exceeding twenty pounds a year or a curacy with a stipend not exceeding a like amount shall not be deemed the holding of an ecclesiastical office or preferment or curacy;

(ii) who has entered into the receipt or claimed to enter into the receipt of a pension under this Measure upon his being permanently disabled for the performance of his work or duties shall be deemed to have retired or to be in retirement if and so long as he undertakes ecclesiastical duty for remuneration otherwise than with the sanction given expressly for the purposes of this provision of the bishop of the diocese in which the duty is undertaken.

Conditions  
for the  
receipt of  
pensions.

**5.** Subject in the case of a non-contributing pensioner or a voluntary contributor to the terms and conditions upon which his pension is granted or agreed to be paid by the pensions authority, every recipient of a pension under this Measure (herein referred to as a

pensioner) must satisfy the following conditions (that is to say):—

- (i) He must continue in retirement;
- (ii) He must have attained the age of seventy years or such lesser age as the pensions authority may hereafter appoint, or alternatively have retired before attaining that age by reason of permanent disability for the performance of his work or duties;
- (iii) He must not have resigned his pension;
- (iv) He must not have executed any deed of relinquishment under the Clerical Disabilities Act, 1870; 33 & 34 Vict.  
c. 91.
- (v) He must continue to be a member of the Church of England, and must not belong to any religious body which is not in communion with the Church of England;
- (vi) He must furnish to the pensions authority such evidence as such authority may from time to time require or prescribe of his right to receive his pension;
- (vii) He must not be in receipt of any pension as a retired diocesan bishop of any diocese within the area to which this Measure applies;
- (viii) He must not under ecclesiastical law or the provisions of any statute or Measure for the time being in force be incapable of holding preferment in the Church;
- (ix) He must not have incurred a forfeiture or a suspension of his pension.

**6.**—(1) Subject to any agreement with a voluntary contributor made hereunder, every pension under this Measure shall be by way of annuity accruing from day to day and payable (subject to any necessary apportionment) by equal quarterly instalments on the thirty-first day of March, the thirtieth day of June, the thirtieth day of September, and the thirty-first day of December in each year. Payment  
and  
application  
of pensions.

(2) Subject to the provisions of this Measure, a pension under this Measure shall be incapable of being assigned, charged, or anticipated, and every purported assignment of or charge upon the same shall be void,

and the same shall not pass to any trustee in bankruptcy of the pensioner.

(3) A pension under this Measure may in any case where a pensioner becomes of unsound mind, whether so found by inquisition or not, or is disabled by mental or physical incapacity from managing his own affairs, at the discretion of the pensions authority, be paid or applied by or under the direction of such authority to or for the maintenance, benefit or support of any one or more of the following persons (that is to say):—the pensioner, his wife, his children or remoter issue, their husbands and wives, and any other persons who, in the opinion of the pensions authority, are normally dependent on the pensioner.

(4) Provided that no instalment of a pension shall be paid to a pensioner or applied under the provisions hereof if and so long as there are any arrears of contributions due under this Measure, or any agreement made hereunder from such pensioner to the pensions authority, and the pension of such pensioner shall for such period as may be necessary be retained by the pensions authority and applied in discharging the said arrears, together with interest at the rate of five per cent. per annum, calculated from the respective dates upon which the contributions in arrear were due.

(5) Provided also that in any case where a non-contributing pensioner is in receipt of a pension under the Incumbents Resignation Acts, 1871 and 1887, the pensions authority shall have power to apportion the pension granted to such pensioner under this Measure between the incumbent who has succeeded him and himself, and to divide and pay the pension affected upon the basis of such apportionment.

Rates of  
pension.

7.—(1) Subject to the provisions of this Measure every pension payable to a pensioner who has been a compulsory contributor shall be paid at the rate applicable to him under the pension table and pension rules contained in the First Schedule to this Measure :

Provided that the pensions authority shall have power to grant to a pensioner who has been a compulsory contributor and who has retired before attaining the age of seventy years by reason of permanent disability for the performance of his work or duties such increase

of pension as (i) the amount of any funds applicable for the purpose by reason of the conditions subject to which the same were given or granted will in the opinion of the pensions authority admit of, regard being had to existing and future claims upon the said funds, and (ii) is in the opinion of the pensions authority urgently required in view of the financial circumstances of the pensioner or of his impaired health :

Provided also that in the event of the death of a pensioner who has been a compulsory contributor within twelve months of his entering upon his pension, the pensions authority shall pay to his representative the full pension for one year less any instalment thereof actually received by him.

(2) No pension granted to a non-contributing pensioner shall exceed the annual sum of seventy-five pounds unless, in the opinion of the pensions authority, moneys are available for augmenting such pension under this Measure.

(3) Every pension payable to a pensioner who has been a voluntary contributor shall be paid at such rate as is provided for by his agreement with the pensions authority.

(4) Provided that no agreement shall be made with a voluntary contributor under this Measure providing for the payment to him of a pension at any greater rate than the fund derived from the contributions of voluntary contributors hereunder is adequate to provide upon a proper actuarial basis, but this proviso shall not apply to any compulsory contributor who may become a voluntary contributor with whom an agreement may, if the pensions authority thinks fit, be made providing for the payment to him of a pension, at the rate which would have been applicable had he continued to be a compulsory contributor.

#### PENSIONS AUTHORITY.

8. For the purposes of this Measure there shall be established a pensions authority consisting of a chairman nominated by the Church Assembly and twenty-five members nominated as follows (that is to say) :—

Sixteen by the Church Assembly (and so that of such sixteen members not more than nine shall be persons ordinarily resident in the Province of

Pensions  
authority.

Canterbury), five by the Ecclesiastical Commissioners, and the remainder in manner provided by the Second Schedule to this Measure.

Incorporation of authority.

9. The pensions authority shall be a body corporate by the name of "The Church of England Pensions Board," and shall have perpetual succession and a common seal, and may hold land for the purposes of their powers and duties without any licence in mortmain.

Tenure of office.

10. The term of office of the chairman and of every member of the pensions authority shall be determined by the body by which he is appointed, and such body shall have power to remove him from office.

Quorum.

11. Seven members of the pensions authority shall constitute a quorum.

Powers and duties.

12. The powers and duties of the pensions authority (which may be exercised and discharged notwithstanding any vacancy in the membership of the authority) shall be—

- (a) to control and administer the system of pensions hereby established;
- (b) to enter into agreements for the receipt and payment of actuarial equivalents of any contributions or pensions under this Measure;
- (c) to make provision for the working expenses of the authority;
- (d) to borrow money for the purposes of this Measure and to secure the same upon the Clergy Pensions Fund hereby established or any of its assets;
- (e) subject to the provisions of this Measure, to make standing orders governing and otherwise to regulate the conduct of the business of the authority;
- (f) to decide questions and appeals under this Measure;
- (g) to appoint such officers and servants as may be necessary for the purpose of carrying this Measure into effect, and to determine their duties and remuneration;
- (h) to appoint such committees consisting of members of the authority as the authority may consider desirable, and, subject to the provisions of this



Measure, to delegate to such committees any powers and duties of the authority;

- (i) to make byelaws for prescribing anything which is to be prescribed under this Measure, and generally for the purpose of carrying this Measure into effect.

**13.** No byelaw made by the pensions authority under this Measure shall come into force until it has been submitted for approval to and approved by the Church Assembly. Byelaws.

**14.** Impressions of the common seal of the pensions authority shall be judicially noticed and admitted in evidence. Judicial notice of seal.

**15.** *Primâ facie* evidence of any byelaw made by the pensions authority and approved by the Church Assembly under this Measure or any decision given by such authority upon the determination of any question or appeal under this Measure may be given by producing a copy of the byelaw or decision sealed with the common seal of the pensions authority. Proof of byelaw.

#### PENSION FUNDS.

**16.**—(1) Subject to the provisions of this Measure the moneys required for pensions payable hereunder for the working expenses of the pensions authority and otherwise for the purpose of carrying this Measure into effect (herein referred to collectively as the purposes of this Measure) shall be derived primarily from contributions made under the provisions hereof and of any agreement made hereunder by persons to whom this Measure applies, and any deficiency shall be made good by the following moneys, investments, and property :— Sources of pension funds.

- (a) moneys received by the pensions authority from the Central Board of Finance of the Church of England (herein referred to as the Central Board);
- (b) capital and other moneys payable to the pensions authority under the provisions of this Measure by the Ecclesiastical Commissioners;
- (c) any moneys payable, transferable or assignable to the pensions authority by the Clergy Pensions Institution under the provisions of this Measure or otherwise;

- (d) any grants made to the pensions authority for the purposes of this Measure by the Ecclesiastical Insurance Office, Limited;
- (e) subject to any conditions imposed by the testators or other donors, testamentary and other gifts and grants made to the pensions authority for the purposes of this Measure; and
- (f) charges upon the revenues of benefices created under the provisions of this Measure (herein referred to as the transitional provisions) relating to the transition from the Incumbents Resignation Acts, 1871 and 1887, to the system of pensions hereby established.

(2) Provided that pensions payable hereunder to pensioners who have been voluntary contributors (other than voluntary contributors who have entered into such an agreement as is expressly authorised by subsection (4) of section seven of this Measure) shall be payable exclusively out of the contributions made by such pensioners in priority to any other application of such contributions.

(3) Provided also that pensions granted hereunder to non-contributing pensioners shall be payable exclusively out of the capital and other moneys payable under the provisions of this Measure to the pensions authority by the Ecclesiastical Commissioners in priority to any other application of such moneys, but may be augmented out of testamentary and other gifts and grants made to the pensions authority upon the condition of their being applied exclusively or primarily in providing such augmentation together with any surplus of the Clergy Pensions Fund hereby established which, under the provisions of this Measure, may become applicable for the same purpose.

Contributions.

**17.**—(1) Every compulsory contributor shall be liable to make contributions for the purposes of this Measure (herein referred to as contributions) in accordance with the rules set out in the Third Schedule to this Measure (herein referred to as the contribution rules).

(2) The collection of contributions due from compulsory contributors shall be effected in accordance with the provisions in that behalf of the contribution rules.

(3) Every voluntary contributor shall pay to the pensions authority such contributions as shall be provided for by his agreement with the said authority.

**18.** The Church Assembly shall make provision for the payment by the Central Board to the pensions authority for the purposes of this Measure out of moneys subject to the disposition of the Church Assembly of an annual sum of not less than fifty thousand pounds.

Grant by  
the Church  
Assembly.

**19.** The Ecclesiastical Commissioners shall, out of their Common Fund, pay or transfer to the pensions authority for the purposes of this Measure—

Grant by  
the Eccle-  
siastical  
Commis-  
sioners.

- (i) a capital sum of three hundred and fifty thousand pounds or equivalent investments agreed upon between the Ecclesiastical Commissioners and the pensions authority, such sum or equivalent investments to be paid or transferred within one month from the appointed day;
- (ii) so long as any annuities granted by the Ecclesiastical Commissioners at any time before the appointed day either in aid of pensions for retired incumbents or in relief of charges imposed on benefices under the Incumbents Resignation Acts, 1871 and 1887, or by way of pension grants for unbeneficed clergymen are still continuing, such sum in each year as shall be equal to the difference between the sum of one hundred thousand pounds and the sum required to meet the said annuities in such year, an apportioned part of such difference being payable in respect of the period between the appointed day and the end of the year containing the appointed day;
- (iii) after the cesser of all the said annuities granted by the Ecclesiastical Commissioners the sum of one hundred thousand pounds in each year.

**20.** Notwithstanding anything in any statute or Measure, the Ecclesiastical Commissioners shall not at any time after the day immediately preceding the appointed day grant any pension out of their Common Fund to any retired incumbent or unbeneficed clergyman or other retired clerk in holy orders, or (except under the provisions of this Measure) make any grant out of their Common Fund in aid of any such pension.

Further  
pensions not  
to be  
granted  
by the  
Ecclesias-  
tical Com-  
missioners.

**21.** The Ecclesiastical Commissioners shall have power to make from time to time to the pensions authority for the purposes of this Measure grants out of their

Further  
grants by  
the Eccle-  
siastical

Commis-  
sioners.

Common Fund of such amounts as they may deem expedient, and any such grant may be made either with or without the condition that the same shall be applied by the pensions authority exclusively or primarily in augmenting the pensions of non-contributing pensioners.

Clergy  
Pensions  
Institution.

**22.—**(1) The Clergy Pensions Institution (in this section referred to as 'the Institution') shall continue to be an incorporated company, but as from the commencement of the appointed day—

- (i) the persons then members of the Institution shall cease to be members thereof, and they and all past members of the Institution shall be exonerated and discharged from all liability to contribute to the assets of the Institution in the event of the same being wound up;
- (ii) the members from time to time of the pensions authority shall be the members of the Institution, and in lieu of any guarantee by the members there shall be contributed to the assets of the Institution out of the Clergy Pensions Fund hereby established, in the event of the Institution being wound up for payment of its debts and liabilities, and of the costs, charges and expenses of the winding up, such amount as may be required not exceeding five thousand pounds;
- (iii) the undertaking of the Institution shall be continued but solely for the purpose of fulfilling the engagements and liabilities of the Institution existing on the day immediately preceding the appointed day in accordance with the rules of the several funds of the Institution (in this section referred to as the Rules) as modified by this Measure;
- (iv) the directors of the Institution shall vacate office and all powers vested in the directors under the Memorandum and Articles of Association of the Institution, and the Rules shall be vested in and exerciseable by the pensions authority; and
- (v) No person shall be admitted as a beneficiary of the Institution.

(2) The engagements and liabilities of the Institution shall be fulfilled in accordance with the following provisions (that is to say):—

- (i) any augmentation granted under the Rules to beneficiaries who are beneficiaries but not pensioners on the thirtieth day of June, nineteen hundred and twenty-six, shall be granted upon the footing of the rates of augmentation adopted by the Institution and the conditions governing the grant of augmentation in the year nineteen hundred and twenty-four being applicable to them, but no augmentation shall be granted to any person admitted as a beneficiary between the thirtieth day of June, nineteen hundred and twenty-six, and the appointed day;
- (ii) compound interest at the rate of three and one-quarter per cent. per annum shall, as from the commencement of the appointed day, be paid or credited to any beneficiary who is a compulsory contributor upon any contributions to the annuity fund of the Institution in any case where under the Rules compound interest at the rate of two and one-half per cent. would have been paid or credited;
- (iii) a beneficiary who is a compulsory contributor shall not be required to pay any further contributions to the annuity fund of the Institution, and any such beneficiary receiving a repayment of contributions or reducing or discontinuing the same shall, notwithstanding such repayment, reduction, or discontinuance, be entitled to receive the same augmentation as he would have received if such repayment, reduction or discontinuance had not been effected;
- (iv) The Clergy Pensions Fund established by this Measure shall stand charged in priority to all other liabilities and obligations of the fund by way of guarantee with the payment of all annuities, augmentation and other sums from time to time payable under the rules as modified by this Measure;

- (v) as from the commencement of the appointed day interest shall be credited at the rate of three and one-quarter per cent. per annum upon the amount held by the Institution at the disposal of each diocesan committee.

(3) At the expiration of a period of five years from the appointed day, and of every subsequent period of five years, a special consolidated audit and valuation of the assets and liabilities of the Institution and of the Clergy Pensions Fund hereby established respectively shall be held and made by an actuary and the auditor for the time being of the Clergy Pensions Fund, and if, upon such audit and valuation, it shall appear, and if the actuary shall certify, that the assets of the Institution, after providing such reserves as the actuary may think proper, are more than sufficient to discharge the liabilities imposed thereon, so as to render available a surplus of an amount to be specified in the actuary's certificate, such surplus shall be paid and transferred by the Institution to the pensions authority for the purposes of this Measure; but if upon such audit and valuation it shall appear and if the actuary shall certify that the assets of the Clergy Pensions Fund are insufficient to discharge the liabilities imposed thereon under this Measure, including the guarantee created by this section, the actuary shall certify what provisions are necessary to make good the deficiency so as to make effective the guarantee created by this section, and such provisions shall be made and given effect to in accordance with such certificate.

(4) If upon the winding up or dissolution of the Institution there remains after satisfaction of all its debts and liabilities any property whatsoever, the same shall be transferred to the pensions authority for the purposes of this Measure.

(5) A copy of this section shall be embodied in every copy of the memorandum of association of the Institution issued after the appointed day.

(6) Such alterations shall be introduced into the articles of association of the Institution and the rules as will bring the same respectively into conformity with the provisions of this section.

## GENERAL.

23.—(1) If any question shall arise—

(a) as to whether this Measure applies to any bishop, priest, or deacon, or

Determina-  
tion of  
questions.

(b) in the case of any bishop, priest, or deacon,  
• to whom this Measure applies—

(i) as to the length of his qualifying period of pensionable service (if any) or the date upon which such qualifying period terminated;

(ii) as to whether he has retired and on what date;

(iii) as to whether he satisfies the conditions laid down for the receipt of a pension under this Measure, or the terms and conditions upon which his pension is granted or agreed to be paid;

(iv) as to the rate at which his pension is to be paid, and whether any deductions are to be made therefrom in respect of arrears of contributions;

(v) as to the correctness of his assessment to contributions or of any estimate of the value of his benefice or of any other estimate or valuation affecting him, made under the contributions rules; or

(vi) as to his right to a repayment of any contributions made by him,

such question shall be decided in manner provided by this section. . . .

(2) Every question to which this section refers shall (except where the question is whether the bishop, priest or deacon concerned is permanently disabled for the performance of his work or duties) be decided by the pensions authority at a meeting specially convened for the purpose of deciding such question.

(3) Any question as to whether a bishop, priest or deacon is permanently disabled for the performance of his work or duties shall be decided by a board of two or more medical referees to be appointed by the pensions authority.

(4) Every decision of a board of medical referees under this section shall be final and conclusive and not subject to appeal to any court, except where the person affected by such decision contends that the same is erroneous in point of law, in which case such person may appeal to the pensions authority, who shall decide any question or questions of law involved at a meeting specially convened for that purpose.

(5) Every decision of the pensions authority under this section shall be given after hearing the bishop, priest or deacon concerned, or his agent.

52 & 53 Vict.  
c. 49.

(6) The Arbitration Act, 1889, shall not apply to any proceedings under this section.

(7) Any person aggrieved by a decision of the pensions authority under this section may, within such limits of time and in such manner as may be prescribed by Rules of Court, appeal from that decision to the High Court, and the decision of that Court on any such appeal shall be final.

Clergy  
Pensions  
Fund.

**24.—**(1) For the purposes of this Measure there shall be established, under the control and management of the pensions authority, a fund called the Clergy Pensions Fund, to the credit of which all moneys, investments and property derived from the several sources mentioned in section sixteen hereof shall be paid and transferred and out of which all disbursements for the purposes of this Measure shall be made.

(2) All moneys paid into the Clergy Pensions Fund which are derived from contributions by compulsory contributors and voluntary contributors respectively, and any other moneys which under the provisions of this Measure or the conditions of any gift or grant to the pensions authority are applicable exclusively or primarily for a particular purpose or are subject to any charge shall respectively be carried to separate accounts, to which distinct assets and investments shall be allocated.

(3) The Board of Trade shall from time to time appoint an auditor of the Clergy Pensions Fund and fix his remuneration, and such auditor shall hold office so long as the Board of Trade think fit, and shall audit the accounts of the Clergy Pensions Fund at such times, and make reports to the Church Assembly upon the



accounts examined by him in such form, as the Board of Trade may direct.

(4) Any moneys forming part of the Clergy Pensions Fund may be invested in the name of the pensions authority in the purchase by annual premiums of deferred annuities in any life assurance office approved by the pensions authority or in and upon any investments and securities for the time being authorised by law for the investment of trust funds, but so that any investments or securities transferred hereunder by the Ecclesiastical Commissioners or by the Clergy Pensions Institution or received by the pensions authority under any testamentary or other gift or grant, though not falling within this class of investments and securities, may be retained if the pensions authority so determine.

(5) The pensions authority shall present annually to the Church Assembly a report showing the working of the Clergy Pensions Fund, and there shall be a special audit and valuation by an actuary of that Fund once at least in every five years from the appointed day, whereupon a report shall be presented to the Church Assembly.

25. If at any time after the expiration of one year from the appointed day it shall appear to the pensions authority after the audit and valuation hereinbefore provided for that the Clergy Pensions Fund is more than sufficient to discharge the liabilities imposed thereon under this Measure, the pensions authority may prescribe the application of the surplus or of any part thereof for all or any of the following purposes:—

Application  
of surplus.

- (i) The increase of the pensions payable under this Measure to pensioners who have been compulsory contributors or any class of them;
- (ii) The reduction of the contributions payable under this Measure by compulsory contributors or any class of them;
- (iii) The increase of the pensions payable under agreements made under this Measure to pensioners who have been voluntary contributors or any class of them;
- (iv) The augmentation of pensions granted under this Measure to non-contributing pensioners;

- (v) Provision for the widows and orphans of persons to whom this Measure applies either by way of pension, terminable annuity, or otherwise;
- (vi) The reduction of the age of seventy years laid down by section five of this Measure;
- (vii) Any other purpose which in the opinion of the pensions authority is beneficial to the persons to whom this Measure applies.

Ecclesiastical  
discipline.

26. Every pensioner shall remain subject to ecclesiastical discipline and to the provisions of any statute or measure for the time being in force relating to the discipline of the clergy, and in applying any such statute or measure to a pensioner the following provisions shall have effect (that is to say) :—

- (i) in any case where a bishop has power to declare a preferment held in his diocese to be vacant on the ground of the criminal conviction of the holder of such preferment or on any other ground, he shall have power on the same grounds to declare the pension of a pensioner to be forfeited;
- (ii) in any case where a court has jurisdiction to pronounce on any ground a sentence of deprivation of or suspension from preferment, such court shall have jurisdiction to pronounce upon the same ground a sentence of forfeiture or suspension of a pension under this Measure; and
- (iii) a pensioner shall be deemed to hold preferment in any place where he temporarily or permanently resides.

Transition  
from the  
Incumbents  
Resignation  
Acts, 1871  
and 1887.

27.—(1) For the purpose of providing for the transition from the Incumbents Resignation Acts, 1871 and 1887 (in this section referred to as the Resignation Acts), to the system of pensions hereby established, the following provisions shall have effect :—

- (i) In any case where a compulsory contributor who was admitted to deacon's orders before the appointed day—

(a) is about to retire, and, in the opinion of the pensions authority, is entitled to enter upon the receipt of a pension under this Measure, and

(b) has held for any period immediately before his retirement a benefice, the annual value of which exceeds, in the opinion of the pensions authority, three hundred and fifty pounds,

the bishop of the diocese in which such benefice is situate, shall, at the request of the pensions authority cause a commission to issue under his hand and seal.

(ii) Such commission shall be constituted as if it were a commission under the Resignation Acts and may exercise the powers of such a commission and, so far as circumstances shall permit, shall proceed in manner laid down by the Resignation Acts, but solely for the purpose of determining the questions which, under the provisions of this section, are to be determined by such commission;

(iii) Every commission under this section shall determine and in their return certify the annual value of the benefice to which the commission relates and also, in any case where—

(a) such annual value exceeds five hundred and twenty-five pounds;

(b) one-third part of such annual value exceeds the pension under this Measure upon the receipt of which the retiring incumbent concerned is about to enter; and

(c) such retiring incumbent is vacating a benefice held by him on the appointed day, and claims before the commission that his pension under this Measure should be augmented,

whether it is in all the circumstances of the case expedient that any and what augmentation not exceeding such an annual sum as together with such pension will be equal to one-third part of such annual value be granted;

(iv) In any case where in the return to a commission under this section it is certified that the annual value of the benefice to which the commission relates exceeds three hundred and fifty pounds,

the bishop issuing the commission shall by a declaration made, with the necessary modifications, in the same manner and with the like effects as a declaration by a bishop under the Resignation Acts, charge the revenues of the benefice concerned with the payment to the pensions authority for the purposes of this Measure of an annual sum equal to the least in amount of the following sums (namely) :—

(a) the pension under this Measure upon the receipt of which the retiring incumbent is about to enter;

(b) one-third part of the annual value of the benefice from which such incumbent is retiring; and

(c) the difference between such annual value and three hundred and fifty pounds :

Provided that if it is also certified that in all the circumstances of the case it is expedient that such augmentation as aforesaid be granted the charge to be created by the declaration of the bishop hereunder shall be increased by an annual sum equal to the amount of the augmentation recommended :

(v) A charge in favour of the pensions authority created under the provisions of this section shall, subject to the provisions of this section—

(a) have the same incidents as a pension under the Resignation Acts, and accordingly, but without prejudice to any other remedy be recoverable as a debt by the pensions authority, and

(b) continue for the same period as the pension under this Measure of the retiring incumbent concerned.

(2) For the purposes of this section the annual value of benefices shall be estimated in manner laid down by the Resignation Acts.

(3) The pensions authority shall give notice to the Ecclesiastical Commissioners and to Queen Anne's Bounty of any charge on the revenues of a benefice created under this section, and the Ecclesiastical Commissioners and

Queen Anne's Bounty respectively shall, in any case where the incumbent of the benefice charged is in receipt of any augmentation grant or other moneys from the said Commissioners or from Queen Anne's Bounty, apply the same so far as the same will extend or are required in satisfying such charge :

Provided that no portion of any augmentation grant or other moneys required to meet contributions under this Measure in accordance with the provisions of the contribution rules shall be applied in satisfying any charge created under this section.

(4) In any case where, under the provisions of this section, a commission has certified that it is expedient that such augmentation as aforesaid be granted, and the charge created hereunder has been increased accordingly the pensions authority shall out of the Clergy Pensions Fund augment the pension under this Measure of the pensioner who has retired from the incumbency of the benefice subject to the increased charge by an annual sum equal to the amount of the increase :

Provided that references in the foregoing subsections of this section to the pension of a pensioner who is granted augmentation hereunder shall be construed as referring to his pension under this Measure apart from any augmentation of the same under this subsection.

(5) In any case where the revenues of a benefice already charged with a pension under the Resignation Acts become subject to a further charge under this section, such further charge shall be suspended until such pension has determined.

(6) The provisions of the Resignation Acts—

- (i) relating to the resignation or avoidance of benefices ;
- (ii) requiring any consent of a patron ;
- (iii) as to the commencement, cesser, diminution, or variation of pensions ;
- (iv) as to expenses and costs ;

and any other provisions of the said Acts in conflict with the provisions of this section shall not apply to commissions issued and charges upon the revenues of benefices created under this section or to pensioners who have held benefices affected by such charges.

(7) The expenses of commissions under this Measure shall be paid by the pensions authority out of the Clergy Pensions Fund according to a scale to be prescribed by the said authority.

(8) Subject to the provisions of this section no pension shall at any time after the day immediately preceding the appointed day be granted under the Resignation Acts to an incumbent who has not attained the age of fifty-five years before the appointed day.

(9) A pension under the Resignation Acts shall be deemed to be granted on the day on which the incumbency affected becomes void and such pension commences.

Pensions  
under Deans  
and Canons  
Resignation  
Act, 1872.  
35 & 36 Vict.  
c. 8.

**28.**—(1) No pension shall at any time after the day immediately preceding the appointed day be granted under the Deans and Canons Resignation Act, 1872, to any dean, canon or minor canon, who has not attained the age of fifty-five years before the appointed day.

(2) A pension under the said Act shall be deemed to be granted on the day of the date of the bishop's certificate certifying the incapacity of the dean, canon or minor canon concerned.

Curate's  
declaration  
and licence.  
28 & 29 Vict.  
c. 122.

**29.**—(1) There shall be added to the stipendiary curate's declaration set out in section three of the Clerical Subscription Act, 1865, at the end of such declaration the words "except in respect of contributions under the Clergy Pensions Measure, 1926."

(2) A bishop shall, upon his specifying in a licence granted by him to a stipendiary curate the amount of the stipend to be paid to the curate, add, in such form as he shall think fit, words to the same effect as the words which are to be added to the stipendiary curate's declaration under this section.

Reciprocal  
arrange-  
ments  
with other  
Churches.

**30.**—(1) The pensions authority may enter into reciprocal arrangements with the authority controlling and administering any pension scheme for providing pensions for the clergy of any church to which this section applies under which—

(i) any bishop, priest or deacon to whom this Measure applies who is ministering or is about to minister in any church to which this section

applies, may, if the pensions authority so determine, be transferred to the pension scheme of that church;

- (ii) any bishop, priest or deacon to whom this Measure has become applicable who has ministered in any church to which this section applies may in substance retain in such manner and to such extent as the reciprocal arrangements shall provide any right to or expectations of a pension which he may already have acquired.

(2) A bishop, priest or deacon transferred hereunder to the pension scheme of a church to which this section applies shall, as from the date of his transfer, cease to have any right or claim to receive at any time a pension or a return of contributions under this Measure, but so that the pensions authority shall have power to reinstate him in the position of a person to whom this Measure applies upon such terms and conditions as such authority may deem expedient.

(3) The pensions authority may prescribe byelaws for the purpose of carrying into effect the provisions of this section, and such byelaws may provide for the payment out of or into the Clergy Pensions Fund of any moneys payable or receivable under any reciprocal arrangements authorised by this section.

(4) No voluntary contributor shall be transferred under this section to the pension scheme of any church unless he shall consent to such transfer.

(5) This section shall apply to all episcopal churches in communion with the Church of England in which clerks in Holy Orders of the Church of England are admitted to minister.

**31.**—(1) Subject to the provisions of this section in any case where a compulsory contributor—

- (i) retires otherwise than after a qualifying period of pensionable service, or
- (ii) dies before entering upon the receipt of a pension under this Measure,

the pensions authority shall repay to him or to his representative out of the Clergy Pensions Fund—

- (i) such a sum as shall be equal to the aggregate of all contributions paid by him under this Measure

Returns of  
contribu-  
tions.

together with compound interest at the rate of two and one-half per cent. per annum with annual rests upon each contribution repaid calculated from the date of the payment thereof, or

- (ii) in the case of a compulsory contributor admitted to deacon's orders after the day immediately preceding the appointed day who dies before he has entered upon the receipt of a pension under this Measure, either

- (a) such a sum as aforesaid, or  
(b) the sum of two hundred pounds,  
whichever shall be the greater.

(2) The benefits conferred by this section shall be incapable of being assigned by any instrument or act inter vivos or of being charged or anticipated, and the same shall not pass to any trustee in bankruptcy of the compulsory contributor entitled to the same.

(3) Any arrears of contributions due from a compulsory contributor entitled to any repayment under this section shall be deducted by the pensions authority from the moneys repaid, together with interest at the rate of five per cent. per annum calculated from the respective dates upon which the contributions in arrear were due.

Determina-  
tion of age.

**32.** For the purposes of this Measure a person shall be deemed not to have attained the age of fifty-five years until the commencement of the fifty-fifth anniversary of the day of his birth, and similarly with regard to other ages.

Invitation  
to parishes  
to provide  
contribu-  
tions.

**33.** The pensions authority shall send to parochial church councils (or churchwardens where there is no council) a notification of the charges imposed by this measure upon their parochial clergy, and shall invite the diocesan board of finance in every diocese to frame a scheme under which with the co-operation of the parochial church councils of the diocese (or the churchwardens where there is no council) such provision as circumstances admit of may be made either by means of a capital fund or otherwise for exonerating the parochial clergy from the said charges.

Burnley  
Rectory  
Act, 1890.  
53 & 54 Vict.  
c. xxiii.

**34.** Notwithstanding any of the provisions of the Burnley Rectory Act, 1890, the incumbent of the rectory of Burnley shall be under a like liability to pay contri-



butions under this Measure and have the like right to a pension hereunder on retirement as the incumbents of other benefices :

Provided that no charge shall be created on the revenues of the rectory of Burnley under the transitional provisions of this Measure.

**35.** In this Measure—

The expression “prescribed” means prescribed by byelaws under this Measure ;

The expression “actuary” means a Fellow of the Institute of Actuaries, or of the Faculty of Actuaries in Scotland.

Interpreta-  
tion.

**36.**—(1) Subject to the provisions of this section this Measure shall come into force on the appointed day.

Commence-  
ment.

(2) The appointed day shall be such day subsequent to the day on which this Measure receives the Royal Assent as the Archbishops of Canterbury and York by writing under their respective hands and archiepiscopal seals shall jointly determine.

(3) The determination of the appointed day under this section shall be notified by advertisement in the “London Gazette.”\*

(4) The provisions of this Measure establishing the pensions authority shall come into force on the passing of this Measure.

**37.** This Measure may be cited as the Clergy Pensions Measure, 1926.

Short title.

**38.**—(1) Subject to the provisions of this section this Measure shall extend to the whole of the Provinces of Canterbury and York including the Isle of Man but not including the Channel Islands.

Extent.

(2) The provisions of this Measure relating to non-contributing pensioners and the transitional provisions hereof shall not apply to the Isle of Man.

**39.** The enactment and measure set out in the Fourth Schedule to this Measure are hereby repealed to the extent mentioned in the third column of that schedule.

Repeal.

---

\* The day thus appointed was 1st January, 1927 ; see “London Gazette,” 30th November, 1926, at p. 7831.

## SCHEDULES.

## Section 7.

## THE FIRST SCHEDULE.

## PART I.

*Pension Table.*

| Qualifying period of pensionable service. | Rate of Pension in cases where the pension is entered upon at or above the age of 70. | Example of rate of Pension on retirement by reason of permanent disability under the age of 70.* |
|-------------------------------------------|---------------------------------------------------------------------------------------|--------------------------------------------------------------------------------------------------|
| 15 years                                  | £ 34                                                                                  | £ 100                                                                                            |
| 16 „                                      | 38                                                                                    | 102                                                                                              |
| 17 „                                      | 42                                                                                    | 104                                                                                              |
| 18 „                                      | 46                                                                                    | 106                                                                                              |
| 19 „                                      | 50                                                                                    | 108                                                                                              |
| 20 „                                      | 55                                                                                    | 110                                                                                              |
| 21 „                                      | 60                                                                                    | 112                                                                                              |
| 22 „                                      | 65                                                                                    | 114                                                                                              |
| 23 „                                      | 70                                                                                    | 116                                                                                              |
| 24 „                                      | 75                                                                                    | 118                                                                                              |
| 25 „                                      | 80                                                                                    | 120                                                                                              |
| 26 „                                      | 86                                                                                    | 122                                                                                              |
| 27 „                                      | 92                                                                                    | 124                                                                                              |
| 28 „                                      | 98                                                                                    | 126                                                                                              |
| 29 „                                      | 105                                                                                   | 128                                                                                              |
| 30 „                                      | 112                                                                                   | 130                                                                                              |
| 31 „                                      | 120                                                                                   | 132                                                                                              |
| 32 „                                      | 128                                                                                   | 134                                                                                              |
| 33 „                                      | 137                                                                                   | 136                                                                                              |
| 34 „                                      | 146                                                                                   | 138                                                                                              |
| 35 „                                      | 155                                                                                   | 140                                                                                              |
| 36 „                                      | 164                                                                                   | 142                                                                                              |
| 37 „                                      | 173                                                                                   | 144                                                                                              |
| 38 „                                      | 182                                                                                   | 146                                                                                              |
| 39 „                                      | 191                                                                                   | 148                                                                                              |
| 40 years (or over)                        | 200                                                                                   | 150                                                                                              |

\* NOTE :—This rate illustrates the working of Rule 1 of Part II. of this Schedule in the case of pensioners who (i) are admitted to deacon's orders before attaining the age of 30; (ii) continue to render qualifying pensionable service until retirement; and (iii) retire by reason of permanent disability under the age of 70.

## PART II.

*Pension Rules.*

1. The rate of pension of a pensioner who has retired by reason of permanent disability under the age of 70 shall be ascertained by dividing by two the pension which such pensioner would have entered upon had he continued to render qualifying pensionable service until attaining the age of 70 and had then retired, and by adding until a maximum rate of £150 is reached £2 for each complete year of the excess of his qualifying period of pensionable service over 15 years.

2. The pensions of deans and canons (not being minor canons) of cathedral and collegiate churches, appointed before the appointed day, to whom the Deans and Canons Resignation Act, 1872, would, if this Measure had not been passed, have applied, shall be paid at the fixed rates of four hundred and fifty pounds per annum in the case of a dean, and three hundred pounds per annum in the case of a canon, and the Pension Table contained in Part I. of this Schedule, and Rule 1 of these Rules shall not apply to them.

## THE SECOND SCHEDULE.

## Section 8.

1. Four members of the pensions authority shall, subject to the provisions of this Schedule, be nominated by the Church Assembly from among the beneficiaries of the Clergy Pensions Institution.

2. Of such four members one to be selected by the Church Assembly shall vacate office when and so soon as the total number of the beneficiaries of the Institution in existence on the appointed day is reduced by reason of death or otherwise by two thousand.

3. A second and third of such four members selected as aforesaid shall respectively vacate office when and so soon as the said total number of the said beneficiaries is reduced in manner aforesaid by four thousand and six thousand inclusive in each case of the previous reductions.

4. The remaining of such four members shall vacate office when, and so soon as, the total number of the said beneficiaries does not exceed five hundred.

5. The place of any member of the pensions authority vacating office under the provisions of this Schedule shall be filled upon the nomination of the Church Assembly, both in respect of the vacancy provided for by this Schedule and of every subsequent vacancy.

## Section 17.

## THE THIRD SCHEDULE.

### CONTRIBUTION RULES.

1.—(a) Subject to the provisions of this Schedule every compulsory contributor (in this Schedule referred to as a contributor) shall pay contributions half-yearly at the rate applicable to him under the following table :—

| CONTRIBUTION TABLE.                      |   |   |       | Amount of<br>half-yearly<br>Contribution. |    |         |
|------------------------------------------|---|---|-------|-------------------------------------------|----|---------|
| Amount of Assessable<br>Clerical Income. |   |   |       |                                           |    |         |
|                                          |   |   |       | £                                         | s. | d.      |
| Exceeding 100l. but not exceeding 125l.  |   |   |       | -                                         | -  | 1 17 6  |
| „ 125l.                                  | „ | „ | 150l. | -                                         | -  | 2 5 0   |
| „ 150l.                                  | „ | „ | 175l. | -                                         | -  | 2 12 6  |
| „ 175l.                                  | „ | „ | 200l. | -                                         | -  | 3 0 0   |
| „ 200l.                                  | „ | „ | 225l. | -                                         | -  | 3 7 6   |
| „ 225l.                                  | „ | „ | 250l. | -                                         | -  | 3 15 0  |
| „ 250l.                                  | „ | „ | 275l. | -                                         | -  | 4 2 6   |
| „ 275l.                                  | „ | „ | 300l. | -                                         | -  | 4 10 0  |
| „ 300l.                                  | „ | „ | 325l. | -                                         | -  | 4 17 6  |
| „ 325l.                                  | „ | „ | 350l. | -                                         | -  | 5 5 0   |
| „ 350l.                                  | „ | „ | 375l. | -                                         | -  | 5 12 6  |
| „ 375l.                                  | „ | „ | 400l. | -                                         | -  | 6 0 0   |
| „ 400l.                                  | „ | „ | 425l. | -                                         | -  | 6 7 6   |
| „ 425l.                                  | „ | „ | 450l. | -                                         | -  | 6 15 0  |
| „ 450l.                                  | „ | „ | 475l. | -                                         | -  | 7 2 6   |
| „ 475l.                                  | „ | „ | 500l. | -                                         | -  | 7 10 0  |
| „ 500l.                                  | „ | „ | 525l. | -                                         | -  | 7 17 6  |
| „ 525l.                                  | „ | „ | 550l. | -                                         | -  | 8 5 0   |
| „ 550l.                                  | „ | „ | 575l. | -                                         | -  | 8 12 6  |
| „ 575l.                                  | „ | „ | 600l. | -                                         | -  | 9 0 0   |
| „ 600l.                                  | „ | „ | 625l. | -                                         | -  | 9 7 6   |
| „ 625l.                                  | „ | „ | 650l. | -                                         | -  | 9 15 0  |
| „ 650l.                                  | „ | „ | 675l. | -                                         | -  | 10 2 6  |
| „ 675l.                                  | „ | „ | 700l. | -                                         | -  | 10 10 0 |

(b) Where the assessable clerical income exceeds 700l. the amount of the half-yearly contribution payable shall be ascertained by adding to 10l. 10s. seven shillings and sixpence, with a further increase of seven shillings and sixpence for each complete 25l. of income in excess of 700l.

(c) Provided that a contributor who has attained the age of 70 years and has not retired, but whose qualifying period of pensionable service, if and when he retires, will be not less than 40 years, shall be exempt from the payment of contributions.

2. For the purposes of Rule 1 assessable clerical income means the net annual value of any benefice, deanery, prebend or canonry held by the contributor, together with the net annual value of his parsonage house or house of residence (if any), or the annual amount of the stipend, salary or emolument received by him in respect of the office or function by virtue whereof this Measure applies to him, and so that such annual values and other sources of income shall be aggregated in any case where more than one preferment is held by a contributor, or where this Measure applies to a contributor in more than one capacity.

3. Subject to the provisions of these rules the net annual values of benefices, deaneries, prebends, and canonries, and of parsonage houses and houses of residence, and the amount of any stipend, salary or emolument shall be estimated by the pensions authority :—

- (i) in the case of benefices according to the Returns of parochial statistics made to the Church Assembly, and so that in the case of any estimate made within one year from the appointed day the Returns for the year nineteen hundred and twenty-five shall be adopted, and in the case of any other estimate the Returns for the calendar year preceding the calendar year in which the estimate is made ;
- (ii) in the case of a parsonage house or house of residence according to the annual value thereof for the purpose of the enactments relating to income tax, but subject to the deduction of the sum (if any) by which such annual value exceeds one-eighth of the net annual value of the benefice, deanery, prebend or canonry to which such parsonage house or house of residence belongs estimated in manner laid down by this rule ;
- (iii) in the case of stipends paid to stipendiary assistant curates according to the stipends assigned to them by their respective licences ;
- (iv) in any other case (including any case where the said Returns or the said licences do not, in the opinion of the pensions authority, afford proper evidence for an estimate) in such manner as the pensions authority may think sufficient ;

and the pensions authority shall assess contributors to contributions according to such estimates :

Provided that any pension under the Incumbents Resignation Acts, 1871 and 1887, or the Deans and Canons Resignation Act, 1872, and any charge created under the transitional provisions of this Measure, shall be allowed as a deduction in estimating the net annual value of benefices, deaneries, and canonries under these rules.

4. It shall be the duty of every bishop, priest and deacon to answer in writing any question addressed to him by the pensions authority for the purpose of obtaining evidence upon which to found an estimate or assessment under these rules, and to furnish the pensions authority with such information and such documents as such authority shall reasonably require for the same purposes.

5. Assessments under these rules shall be communicated to the Ecclesiastical Commissioners, and it shall be the duty of the Ecclesiastical Commissioners in any case where either—

- (a) an assessed contributor is in receipt of any augmentation grant or other moneys from the Ecclesiastical Commissioners; or
- (b) an assessed contributor is paid the stipend, salary or emolument upon which he is assessed by a person in receipt of any augmentation grant or other moneys from the Ecclesiastical Commissioners;

to deduct the assessed contribution from the next payment made by them in respect of such augmentation grant or other moneys and to pay the same to the pensions authority.

6. Alternatively, collection of contributions assessed under these rules may, where circumstances admit and the pensions authority deem it expedient, be effected through Queen Anne's Bounty, and in any such case the last preceding rule shall *mutatis mutandis* apply to such collection.

7. In any case where any contribution is deducted and paid to the pensions authority by the Ecclesiastical Commissioners or by Queen Anne's Bounty under these rules, such deduction and payment shall discharge—

- (a) the contributor assessed to such contribution from his liability in respect thereof;
- (b) the Ecclesiastical Commissioners or Queen Anne's Bounty, as the case may be, from all liabilities and duties arising otherwise than under these rules in respect of so much of the augmentation grant or other moneys as is deducted;
- (c) any person liable to pay a stipend, salary or emolument in respect of which the contribution is assessed from such part of the instalment or payment in respect thereof payable next after the deduction has been made as is equal to the deducted contribution.

8. In any case where an assessed contribution is not collected by deduction under these rules, it shall be paid to the pensions authority at their principal office by the assessed contributor except where he is assessed in respect of a stipend, salary or emolument paid to him by the incumbent of a benefice, in which case the payment shall be made by such incumbent, who shall by virtue of such payment be discharged from so much of the instalment of, or payment in respect of, such stipend, salary or emolument payable next after the payment by him of the contribution as is equal to the amount of the contribution :

Provided that a contributor assessed in respect of a stipend, salary, or emolument paid to him by the incumbent of a benefice shall, where the pensions authority so direct, pay his contributions, or any of them, directly to the said authority at their principal office.

9. The sending by post by the pensions authority to an assessed contributor or such an incumbent as is mentioned in the last preceding rule of a written demand for the payment of an assessed contribution stating the amount thereof and addressed to the contributor or incumbent at his last known place of residence shall be *prima facie* evidence that a contribution of the amount mentioned in the demand is due and owing from or payable by the contributor or the incumbent as the case may be.

10. All moneys due from a contributor or from an incumbent of a benefice liable for the payment of contributions under these rules shall be a debt due to, and recoverable by, the pensions authority from such contributor or incumbent.

11. Contributions shall be payable under these rules on the appointed day, upon such day as shall be later in date by six months and upon every anniversary of such days respectively and upon the basis of the value (as computed under these rules) of the benefice, deanery, canonry or prebend held or house of residence or parsonage house occupied or the amount of stipend, salary or emolument in course of receipt on the appointed day, the day six months later in date or the anniversary of either of such days as the case may be without any apportionment for broken periods of less than six months, and so that no contribution shall be payable in respect of a clerical income received for, or in respect of a period which does not include the appointed day the day six months later in date or some anniversary of one of those days.

12. The pensions authority shall have power to prescribe byelaws providing for a valuation (either general or partial) of benefices for the purposes of these rules being made at such time or times and according to such principles as such authority may think fit.

## Section 39.

## THE FOURTH SCHEDULE.

## ENACTMENT AND MEASURE REPEALED.

| Session and Chapter.    | Short Title.                                    | Extent of Repeal.                                                                                               |
|-------------------------|-------------------------------------------------|-----------------------------------------------------------------------------------------------------------------|
| 35 Vict., c. 8          | The Deans and Canons Resignation Act, 1872.     | The whole, except in respect of persons who have attained the age of fifty-five years before the appointed day. |
| 11 & 12 Geo. V., No. 2. | The Ecclesiastical Commissioners Measure, 1921. | The whole Measure.                                                                                              |

## No. 7.

A MEASURE passed by the National Assembly  
of the Church of England

To provide for Bishops' Pensions.

[15th December 1926.]

Scope of  
Measure.

1. This Measure shall apply to the bishop of every diocesan bishopric in England, whether created before or after the passing of this Measure, except the bishopric of Sodor and Man.

Bishops to  
receive pen-  
sions from  
Ecclesias-  
tical Com-  
missioners.  
32 & 33 Vict.  
c. 111.

2. Every bishop to whom this Measure applies who—

- (a) with or without proceedings under the Bishops' Resignation Act, 1869, resigns his bishopric on or after attaining the age of seventy years, or
- (b) under the provisions of the Bishops' Resignation Act, 1869, resigns his bishopric before attaining the age of seventy years

shall be entitled to receive from the Ecclesiastical Commissioners as from the date upon which his resignation of his bishopric becomes effectual, and for so long as he shall live, an annual sum by way of pension of an amount